

WHOLESALE CONTRACT PACKAGE

Texas Residential Real Estate — Purchase & Sale + Assignment

How to use this package

1. When a seller agrees to your price, fill in the blanks in the **Purchase & Sale Agreement** (Section A) — price, earnest money, closing date — and both you and the seller sign & date it. This puts the property under contract in your name.
2. Your name is entered as Buyer with the words **“and/or assigns.”** That single phrase is what makes the contract assignable — it lets you transfer it to a cash buyer.
3. When your cash buyer agrees, fill in the **Assignment of Contract** (Section B) — assignee name and your assignment fee — and both sign. Your fee is your profit.
4. Take both signed documents to a **title company / real estate attorney** to close. They handle the money and the deed. You get paid at closing.

IMPORTANT — READ THIS. This is a reusable **template**, not legal advice, and it has not been reviewed by an attorney for your situation. Texas law (Tex. Occ. Code §1101.0045) requires that a person selling or assigning an **equitable interest** in a contract — which is what wholesaling is — **disclose in writing** to the buyer that they are assigning a contract and do not hold legal title. That disclosure is built into Section A (clause 9) and Section B. Before you use this for real deals, have a Texas real estate attorney or title company review it and confirm it meets current law. Wholesaling without proper disclosure can be treated as unlicensed brokerage.

Prepared by WholesaleOS — pre-filled with a verified lead from your pipeline. Replace the property & seller on each new deal.

SECTION A — RESIDENTIAL PURCHASE & SALE AGREEMENT

(Assignable)

Effective Date: _____

1. Parties.

Seller: RODRIGUEZ EDGAR JAVIER

Buyer: Mohammed Henna, **and/or assigns**

2. Property. Seller agrees to sell and convey to Buyer the real property and all improvements located at:

Address: 7307 Krueger Rd, Houston, TX 77016

County: Harris County, Texas

Legal description (or 'per title commitment'): _____

3. Purchase Price.

Total purchase price (USD): \$ _____

Earnest money (held by title company): \$ _____

4. Option / Inspection Period. Buyer shall have _____ days from the Effective Date to inspect the Property and may terminate for any reason during this period, in which case the earnest money is refunded to Buyer.

5. Title & Closing. Closing shall occur on or before _____, 20____, at a title company of Buyer's choice. Seller shall convey marketable title by general warranty deed, free of liens except as agreed. Seller pays for the owner's title policy unless otherwise agreed.

6. Condition. The Property is sold **AS-IS, WHERE-IS**, with all faults. Buyer relies on its own inspection. Seller makes no warranty as to condition.

7. Possession. Possession shall be delivered to Buyer at closing and funding, unless a separate written agreement provides otherwise.

8. Assignment. Buyer may assign, transfer, or convey all of Buyer's rights and obligations under this Agreement to a third party without further consent of Seller. Upon assignment and the assignee's assumption of Buyer's obligations, the original Buyer is released.

9. Equitable Interest Disclosure (Texas). Buyer discloses to Seller that Buyer is acquiring an **equitable interest** in the Property through this Agreement and **may sell or assign this contract** to another party for a fee or profit. Buyer **does not hold legal title** to the Property and is acting as a principal buyer, not as a licensed real estate broker or agent on Seller's behalf.

10. Default. If Buyer defaults, Seller's sole remedy is to retain the earnest money as liquidated damages. If Seller defaults, Buyer may seek specific performance or a refund of earnest money.

11. Entire Agreement. This Agreement is the entire agreement of the parties and may be amended only in writing signed by both parties. Governed by the laws of the State of Texas.

SELLER

BUYER

RODRIGUEZ EDGAR JAVIER

(Buyer, and/or assigns)

Date: _____

Date: _____

SECTION B — ASSIGNMENT OF REAL ESTATE CONTRACT

This Assignment is made on _____, 20____, between:

Assignor (you — the wholesaler): Mohammed Henna

Assignee (your cash buyer): _____

1. The Contract. Assignor is the Buyer under that certain Residential Purchase & Sale Agreement dated _____ (the "Contract") for the property located at:

Property: 7307 Krueger Rd, Houston, TX 77016

2. Assignment. For value received, Assignor assigns and transfers to Assignee all of Assignor's right, title, and interest in and to the Contract. Assignee accepts the assignment and assumes all of Assignor's obligations under the Contract.

3. Assignment Fee. In consideration of this assignment, Assignee shall pay Assignor a non-refundable assignment fee of:

Assignment fee (USD): \$ _____

payable at closing through the title company, or as follows: _____.

4. Disclosure. Assignee acknowledges that Assignor is assigning an **equitable interest in a contract** and does not hold legal title to the Property. Assignee has performed its own due diligence on the Property and the Contract.

5. Closing. Assignee shall close in accordance with the terms of the Contract. This Assignment is governed by the laws of the State of Texas.

ASSIGNOR

(You — the wholesaler)

Date: _____

ASSIGNEE

(Your cash buyer)

Date: _____